

FREEDOM OF INFORMATION LAW REQUEST

Police Complaints, Calls for Service and Enforcement Records Concerning Photography and Filming

To: Chief Allen Faust, Village of Tuxedo Park Police Department

Email: police@tuxedopark-ny.gov

Police Department: 1 Tuxedo Road, Tuxedo Park, New York 10987

Copy: Rachel Guido, Village Clerk/Treasurer and Records Access Officer — rguido@tuxedopark-ny.gov

Village Office: 80 Lorillard Road, Tuxedo Park, New York 10987

From: David McFadden and Robin McFadden

Date: August 4, 2026

Subject: FOIL Request — Police records concerning private-property photography and filming

Dear Chief Faust:

Pursuant to the New York Freedom of Information Law, Public Officers Law Article 6, please email copies of the Police Department records reasonably described below. This request seeks existing records; it does not ask the Department or Village to answer questions or create a new explanatory record. Personal identifying details may be redacted where authorized by law, but please disclose all reasonably segregable nonexempt portions.

Records requested

1. For January 1, 2025 through the date the search is completed: CAD or dispatch entries, calls-for-service records, complaint logs, incident or offense reports, officer notes, blotter entries, photographs, video references, referrals, warnings, summonses, citations, and written dispositions concerning the boathouse property at 61 Turtle Point Road, tax-map parcel 103-1-24, owned of record by NYELICK Holdings, LLC and associated with David and Robin McFadden, or the single fashion still-photography session conducted there from approximately 10:00 a.m. to 4:00 p.m.
2. For April 20, 2011 through the date the search is completed: CAD or dispatch entries, calls-for-service records, complaint logs, incident or offense reports, officer notes, blotter entries, referrals, warnings, summonses, citations, and written dispositions expressly concerning photography, photographic sessions, filming, video production, drone photography or videography, or paid location shoots conducted on private property within the Village.
3. For January 1, 2025 through the date the search is completed: emails, text messages, memoranda, social-media messages or screenshots, correspondence, notes, reports, and attachments exchanged among or involving Police Department personnel, the Mayor, Trustees, Clerk, Village attorneys, Building Inspector, residents, property owners, occupants, organizations, photographers, media or production companies, or other third parties concerning 61 Turtle Point Road, tax-map parcel 103-1-24, NYELICK Holdings, LLC, photography or filming on private property, boathouses, asserted noise, traffic, parking, safety, privacy or neighborhood-tranquility effects, or the proposed local law.
4. For April 20, 2011 through the date the search is completed: written Police Department communications or records reflecting a decision to investigate, warn, cite, refer, close, decline further action, or otherwise dispose of a complaint after learning that photography or filming on private property had occurred.
5. For January 1, 2025 through the date the search is completed: existing summaries, statistics, memoranda, reports, recommendations, or factual statements supplied by the Police Department to the Mayor, Board of Trustees, Village Clerk, Village attorney, Building Inspector, or any committee concerning the number, nature, location, outcome, or quality-of-life and public-safety effects of photography, filming, drone activity, or boathouse use on private property.

Records maintained through non-Village systems

The requested records include agency records created, received, transmitted, forwarded, or stored through personal email accounts, personal cellular telephones, text-messaging or other messaging applications, and social-

media accounts when those systems were used to conduct or discuss Police Department or Village business. Please preserve and produce responsive attachments and screenshots with their associated communications.

Search guidance

Likely custodians include the Police Chief, officers or dispatch personnel assigned to responsive calls or communications, and any Department employee who communicated about the proposed law or the property at 61 Turtle Point Road. Reasonably calculated search terms include: photograph, photography, photographic session, photo shoot, photoshoot, filming, film, video, drone, commercial gain, commercial use, location, rental, Instagram, boathouse, Chapter 51, McFadden, NYELICK, 61 Turtle Point, and 103-1-24. These terms are search aids and do not replace the record descriptions.

Electronic production and rolling response

Please email responsive records in their existing electronic format where reasonably available, with attachments associated with their parent communications. Because historical records may not be organized chronologically or maintained in one location, please begin with the most recent responsive records and work backward. Please provide records on a rolling basis as they are located rather than withholding the entire production until the historical search is complete. This requested order of production does not limit the dates or scope of the request.

Clarification

If any portion of this request is considered too broad or does not reasonably describe the records, please contact me by email or telephone so that I may clarify or reasonably narrow that portion. When appropriate, please explain how the relevant records are filed, retrieved, or indexed. Please do not treat a question concerning one portion as a reason to delay processing clearly described portions.

Fees

Electronic delivery is requested. If any charge is expected, please provide a written estimate before incurring a cost exceeding \$25. If records cannot be emailed because of volume, please advise what electronic delivery method is available and the actual reproduction cost.

Denials, redactions and records not found

If access to any record or portion is denied, please identify the record or category withheld, state the specific statutory ground for the denial in writing, disclose all reasonably segregable nonexempt portions, and provide the name, mailing address, and email address of the person or body to whom an appeal should be directed. For any specifically requested record that the Village does not possess or cannot locate after diligent search, please provide the certification available under Public Officers Law §89(3)(a).

FOIL response

Please respond within five business days by providing the records, denying access in writing, or acknowledging receipt in writing and stating a reasonable approximate date when the request will be granted or denied, as provided by Public Officers Law §89(3)(a).

Sincerely,

David McFadden and Robin McFadden
28 Pepperidge
Tuxedo Park, NY 10987
mac4tux@gmail.com
(917) 576-2484